



SPONSOR: Rep. Michael Smith & Sen. Wilson

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 232

AN ACT TO AMEND TITLE 10 OF THE DELAWARE CODE RELATING TO THE RANDOMIZED ASSIGNMENT OF CASES IN THE COURT OF CHANCERY.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend Chapter 3, Title 10 of the Delaware Code by making deletions as shown by strike through and
2 insertions as shown by underline as follows:

3 § 330. Randomized Case Assignments in the Court of Chancery.

4 (a) Purpose. The purpose of this section is to ensure impartiality and prevent undue influence in the assignment of
5 cases in the Court of Chancery by implementing a randomized case assignment process.

6 (b) Random Assignment Requirement.

7 (1) All civil actions, petitions, and matters filed in the Court of Chancery shall be assigned to a Vice
8 Chancellor or the Chancellor through a randomized case assignment system administered by the Chancellor.

9 (2) The system shall ensure that no party, attorney, or judge may select, direct, or influence the
10 assignment of any case to a particular Vice Chancellor or the Chancellor.

11 (c) Exemptions.

12 (1) A case may be reassigned from its randomly assigned judge only under the following circumstances: -

13 (i) Recusal or Disqualification: If the assigned judicial officer is required to recuse or is
14 otherwise disqualified under Delaware law or judicial ethics rules.

15 (ii) Related Cases: If a case is substantially related to a previously assigned matter, the
16 Chancellor may, at their discretion, consolidate or reassign the case for judicial efficiency.

17 (iii) Judicial Workload Considerations: The Chancellor may, for good cause and in the interest
18 of docket efficiency, reassign cases among Vice Chancellors, provided that such reassignment is not
19 based on the identity of the parties or attorneys involved.

20 (d) Transparency and Reporting.

21 (1) The Court of Chancery shall adopt and maintain publicly available rules governing the randomization
22 process.

(2) The Clerk of the Court shall annually publish a statistical report summarizing case assignments, including reassignment rates and reasons for reassignment, ensuring accountability and transparency.

(e) No Right to Choose a Judge.

(1) No party, attorney, or litigant shall have the right to demand assignment to or removal of a specific Chancellor or Vice Chancellor, except under applicable rules of judicial recusal or disqualification.

(2) Any attempt to manipulate or evade the randomized case assignment system shall be subject to sanctions, including potential dismissal or disciplinary action.

Section 2. Implementation.

(a) The Court of Chancery shall implement the provisions of this Act no later than 90 days after enactment.

(b) The Chancellor shall promulgate any necessary court rules and administrative orders to effectuate the randomized case assignment process.

Section 3. Effective Date.

This Act shall take effect immediately upon enactment.

SYNOPSIS

This Act requires the Court of Chancery to implement a randomized case assignment process. The implementation of this Act shall occur within 90 days of enactment.